

Court No. - 39

Case :- WRIT - C No. - 37155 of 2015

Petitioner :- Smt. Babita

Respondent :- State Of U.P. & 3 Others

Counsel for Petitioner :- T.K. Mishra

Counsel for Respondent :- C.S.C., Chandan Agrawal

Hon'ble Dilip Gupta, J.

Hon'ble Vinod Kumar Misra, J.

The petitioner is aggrieved by the notice dated 26 March 2015 that has been issued by the Electricity Supply Division 5th, Ghaziabad requiring the petitioner to pay an amount of Rs. 47, 574/- failing which electricity supply would be dis-connected.

It transpires from the record of the writ petition that meter installed in premise which was found to be defective was replaced but according to the petitioner the provisions of Clause 5.6 (d) of the U.P. Electricity Supply Code, 2005 have not been followed and the meter has not been checked in the presence of the petitioner. It is further stated that the petitioner has filed objections before the Assessing Authority but without deciding the objections the notice has been issued.

The petitioner has stated that the objections filed by the petitioner before the Assessing Authority have not been considered. If that be so, the Assessing Authority shall decide the objections filed by the petitioner and then issue a bill after compliance of the provisions of the U.P. Electricity Supply Code, 2005.

However, the petitioner shall deposit 50% of the amount demanded in the impugned notice within a period of two weeks from today. It is made clear that in case the objections have been decided by the Assessing Authority, the petitioner shall be informed so that the petitioner may file an appeal as provided under Section 6.8 (d) of the U.P. Electricity Supply Code, 2005.

The writ petition is, accordingly, disposed of.

Order Date :- 10.7.2015

A. Pt. Singh

(Vinod Kumar Misra, J.) (Dilip Gupta, J.)